

THE ISLAMIA UNIVERSITY OF BAHAWALPUR ACT, 1975
(IV of 1975)

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TEXT

¹THE ISLAMIA UNIVERSITY OF BAHAWALPUR ACT, 1975
(IV of 1975)

[4th March 1975]

**An
Act**

*to provide for the establishment of Islamia University at Bahawalpur and matters
connected and incidental thereto.*

Preamble.— WHEREAS it is expedient to establish an Islamia University at Bahawalpur for the purposes of imparting religious knowledge, improving the teaching, research and publication facilities and to give it an autonomous status;

It is hereby enacted as follow:—

CHAPTER 1
PRELIMINARY

1. Short title and commencement.— (1) This Act may be called the Islamia University of Bahawalpur Act, 1975.

(2) It shall come into force at once.

2. Definitions.— In this Act, unless the context otherwise requires, the following expressions shall have the meanings hereby respectively assigned to them, that is to say—

- (i) “Academic Council” means the Academic Council of the University;
- (ii) “Affiliated College” means an educational institution affiliated to the University but not maintained or administered by it;
- (iii) “Authority” means any of the Authority of the University specified in section 21;
- (iv) “Chairman of Department” means Head of a teaching Department;
- (v) “Chancellor” means the Chancellor of the University;
- (vi) “College” means a constituent college or an affiliated college;
- (vii) “Constituent College” means a college maintained and administered by the University;
- (viii) “Dean” means the Chairman of the Board of a Faculty;
- (ix) “Educational Institution” means an institution imparting instruction in a subject or subjects relating to a Faculty;
- (x) “Faculty” means a faculty of the University;

¹This Act was passed by the Punjab Assembly on 19th February, 1975; assented to by the Governor of the Punjab on 4th March, 1975; and, published in the Punjab Gazette (Extraordinary), dated 4th March, 1975, pages 136-A to 136-JJ.

- (xi) "Government" means Government of the Punjab;
- (xii) "Prescribed" means prescribed by Rules, Statutes, or Regulations;
- (xiii) "Principal" means the head of a college;
- (xiv) "Pro-Chancellor" means the Pro-Chancellor of the University;
- (xv) "Professional College" means a college providing for instruction in courses of studies leading to a degree in Medicine, Engineering, Commerce, Education, Law, Fine Arts or such other subjects as may be prescribed as professional subjects;
- (xvi) "Professor Emeritus" means a retired professor working in a Faculty in an honorary capacity;
- (xvii) "Registered Graduate" means:—
 - (a) a graduate of the University who has his name entered in the register maintained for the purpose; or
 - (b) a graduate of any University who ordinarily resides within the territorial jurisdiction of the University and has his name entered in the register maintained by the University for the purpose;
- (xviii) "Research Officer" means a person engaged whole-time by the University for research, being equivalent in rank to a University teacher;
- (xix) "Senate" means the Senate of the University;
- (xx) "Statutes", "Regulations": and "Rules" means respectively the Statutes, the Regulations and the Rules made or deemed to have been made under this Act;
- (xxi) "Syndicate" means the Syndicate of the University;
- (xxii) "Teachers" means Professors, Associate Professors, Assistant Professors and Lecturers engaged whole-time by the University or by a college for teaching degree, honours, or postgraduate classes and such other persons as may be declared as Teachers by Regulations;
- (xxiii) "Teaching Department" means a Teaching Department maintained and administered by the University or recognized by the University;
- (xxiv) "University" means the Islamia University, Bahawalpur as established under this Act;
- (xxv) "University Teacher" means a whole-time teacher appointed by the University and recognized by the University; and
- (xxvi) "Vice-Chancellor" means the Vice-Chancellor of the University.

CHAPTER II THE UNIVERSITY

3. Incorporation.— (1) The Islamia University, Bahawalpur shall be established at Bahawalpur in accordance with the provisions of this Act.

(2) The University shall consist of the Chancellor, the Pro-Chancellor, the Vice-Chancellor and members of the Senate, the Syndicate and the Academic Council.

(3) The University shall be a body corporate by the name of the Islamia University, Bahawalpur and shall have perpetual succession and a common seal and may sue and be sued by the said name.

(4) The University shall be competent to acquire and hold property both movable and immovable and lease, sell or otherwise transfer any movable and immovable property which vests in or has been acquired by it.

(5) All properties, rights and interests or whatever kind, use, enjoyed, possessed, owned or vested in, or held in trust by, or for the Jamia Islamia, Bahawalpur as constituted under the West Pakistan Jamia Islamia (Bahawalpur) Ordinance, and all liabilities legally subsisting against the said Jamia shall stand transferred to the University as established under this Act.

4. Powers of the University.— The University shall have the powers:—

- (a) to provide for instruction in Islamic learning and allied disciplines, Humanities, Natural and Social Sciences and such other branches of learning as it may deem fit; and to make provisions for research and for the advancement and dissemination of knowledge in such manner as it may determine;
- (b) to prescribe courses of studies to be conducted by it and the colleges;
- (c) to hold examinations and to award and confer degrees, diplomas, certificates, and other academic distinction to and on persons who have been admitted and have passed its examinations under prescribed conditions;
- (d) to confer honorary degrees or other distinctions on approved person in the prescribed manner;
- (e) to provide for such instruction for persons not being students of the University as it may determine, and to grant certificate and diplomas to such persons;
- (f) to confer degree on persons who have carried on independent research under prescribed conditions;
- (g) to affiliate and disaffiliate educational institutions under prescribed conditions;
- (h) to admit educational institutions to its privileges and to withdraw such privileges under prescribed conditions;
- (i) to inspect colleges and other educational institutions associated or seeking association with it;
- (j) to accept the examinations passed and the periods of study spent by students of the University at other Universities and places of learning as equivalent to such examinations and periods of study in the University, as it may determine and to withdraw such acceptance;

- (k) to co-operate with other Universities and public authorities in such manner and for such purposes as it may determine;
- (l) to institute Professorships, Associate Professorships, Assistant Professorships and Lectureships, and any other posts and to appoint persons thereto;
- (m) to create posts for research, publication, extensions, administration and other related purposes and to appoint persons thereto;
- (n) to recognize selected members of the teaching staff of affiliated colleges and or educational institutions admitted to the privileges of the University or such other persons as it may deem fit, as University Teachers;
- (o) to institute and award fellowships, scholarships, exhibitions, bursaries, medals and prizes, under prescribed conditions;
- (p) to establish Teaching Departments, Schools, Colleges, Faculties, Institutes, Centers of Excellence and Area Study Centers, Museums and other Centers of Learning for the development of teaching and research and to make such arrangements for their maintenance, management and administration as it may determine;
- (q) to control the residence of the students of the University and the Colleges, to institute and maintain halls of residence and to approve or license hostels and lodgings;
- (r) to supervise and control the discipline of the students of the University and the Colleges, to promote the extra-curricular and recreational activities of such students, and to make arrangements for promoting their health and general welfare;
- (s) to demand and receive such fees and other charges as it may determine;
- (t) to make provisions for research and advisory services and with these objects to enter into arrangements with other institutions or with public bodies under prescribed conditions;
- (u) to receive and manage property transferred and grants, bequests, trusts, gifts, donations, endowments and other contributions made to the University and to invest any fund representing such property, grants, bequests, trusts, gifts, donations and endowments or contributions in such manner as it may deem fit;
- (v) to enter into, carry out, vary or cancel contracts;
- (w) to provide for the printing and publication of research and other works; and
- (x) to do all such other acts and things, whether incidental to the powers aforesaid or not, as may be requisite in order to further the objects of the University as a place of education, learning and research.

5. Jurisdiction of the University.— (1) Subject to the provisions of this section, the University shall exercise the powers conferred on it by or under this Act with in such territorial limits and with regard to such institutions as may be prescribed.

Provided that Government may, in consultation with the University, by general or special order, modify the extent and scope of the aforesaid powers of the University with regard to such territorial limits or institutions.

(2) No educational institution situated within the territorial limits of the University shall, save with the consent of the University and the sanction of the Government, be associated in any way with, or seek admission to the privileges of, any other University.

(3) The University may admit to its privileges under prescribed conditions, an educational institution falling within the territorial limits of another University whether inside or outside Pakistan; provided that the consent of such other University and the sanction of Government is first obtained.

6. Integration of educational institutions with University and transfer of institutions from University to Government.— (1) Notwithstanding anything to the contrary contained in any other law, notification, contract, agreement or instrument, Government may, by notification in the official Gazette, integrate with the University any educational institution situated anywhere in the Province or transfer any institute, institution or Department of the University to Government.

(2) On the publication of a notification under sub-section (1):—

- (a) all rights, properties, assets and liabilities vested in or undertaken by Government or the University in respect of such educational institution, institute, institution or Department shall respectively become the rights, properties, assets and liabilities of the University or the Government, as the case may be; and
- (b) all persons serving in connection with the affairs of such educational institutions, institute, institution or Department in any capacity shall stand transferred for service under the University or Government, as the case may be, on such terms and conditions as Government may determine;

Provided that such terms and conditions shall not be less favorable than those admissible to them immediately before their transfer to the University or Government.

(3) Any question arising under the proviso to sub-section (2) shall be referred to Government and the decision of Government on such question shall be final.

7. University open to all classes, creeds etc.— The University shall be opened to all persons of either sex and of whatever religion, race, creed, class or color and no person shall be denied the privileges of the University on the grounds of religion, race, caste, creed, class or color;

Provided that nothing in this section shall be deemed to prevent religious instruction being given to the students in their own religious faiths in such manner as may be prescribed.

8. Teaching in the University.— (1) All recognized teaching in various courses shall be conducted by the University or the colleges in the prescribed manner and may include lectures, tutorials, discussions, seminars, demonstrations, as well as

practical work in the laboratories, hospitals, workshops and farms and other methods of instructions.

(2) The authority responsible for organizing recognized teaching shall be such as may be prescribed.

(3) The courses and the curricula shall be such as may be prescribed.

²[(4) A subject to be called “Islamic and Pakistan Studies” shall be taught as a compulsory subject at the Bachelor’s Degree level in all Faculties:

Provided that non-Muslim students may opt for “Ethics and Pakistan Studies” in place of “Islamic and Pakistan Studies”.

(5) A degree shall not be awarded to a student unless he has passed the examination in the subject mentioned in sub-section (4).

(6) The provisions of sub-sections (4) and (5) shall take effect from such date may as be fixed by the Vice-Chancellor.]

9. University Students Union.– (1) There shall be a Union of the Students of the University which shall be represented on the Senate and the Syndicate by the representatives mentioned in clause (xv) of section 22 and in clause (x) of section 24.

(2) The constitution, functions and privileges of the University Student’s Union and other matters relating thereto shall be such as may be prescribed by Statutes at the initiation of the general body of the students of the University.

CHAPTER III

10. Officers of the University.– The following shall be the officers of the University:–

- (i) the Chancellor;
- (ii) the Pro-Chancellor;
- (iii) the Vice-Chancellor;
- ³[(iiia) Pro-Vice Chancellor;]
- (iv) the Deans;
- (v) the Director;
- (vi) the Principals of the constituent colleges;
- (vii) the Chairmen of the Teaching Departments;
- (viii) the Registrar;
- (ix) the Treasurer;
- (x) the Controller of Examinations;

²Added by the Islamia University of Bahawalpur University (Amendment) Ordinance, 1980 (XVI of 1980); and published in the Punjab Gazette (Extraordinary), dated 22.12.1980, pages 1287-M to 1287-P, s.2(1).

³Inserted by the Public Sector Universities (Amendment) Act 2012 (LX of 2012); and published in the Punjab Gazette (Extraordinary), dated 14.11.2012, pages 1581-1593, s.5.

- (xi) the Librarian; and
- (xii) such other persons as may be prescribed.

11. Chancellor.— (1) The Governor of the Punjab shall be the Chancellor of the University.

(2) The Chancellor or his nominee shall preside at the Convocation of the University and the meetings of the Senate.

(3) If the Chancellor is satisfied that the proceedings of any Authority are not in accordance with the provisions of this Act, the Statutes the Regulations, or the Rules, he may, after calling upon such Authority to show cause why such proceedings should not be annulled, by order in writing, annul the proceedings.

(4) Every proposal to confer an honorary degree shall be subject to confirmation by the Chancellor.

(5) The Chancellor shall have the power to assent to such Statutes as are required to be submitted to him by the Senate or withhold assent or refer them back to the Senate for re-consideration.

(6) The Chancellor may remove any person from the membership of any Authority if such person—

- (i) has become of unsound mind; or
- (ii) has been incapacitated to function as member of such Authority; and
- (iii) has been convicted by a court of law of any offence involving moral turpitude.
- ⁴[(iv) has failed to attend three consecutive meetings of the Authority; or
- (v) has accepted any assignment, which involves his absence from the University for a continuous period of six months or more.]

⁵[Provided that no order under this sub-section shall be passed unless the person to be affected thereby is afforded an opportunity of being heard.]

⁶[(7) * * * * *]

⁷[(8) In the performance of his function under the Act, the Chancellor shall act and be bound in the same manner as the Governor of a Province acts and is bound under Article 105 of the Constitution of the Islamic Republic of Pakistan.]

⁸**[11-A Revisional Powers of the Chancellor.**— The Chancellor may, of his own motion or otherwise, call for and examine the record of any proceedings in which an

⁴Inserted by the Islamia University of Bahawalpur University (Amendment) Ordinance, 1981 (XI of 1981); and published in the Punjab Gazette (Extraordinary), dated 4.6.1981, pages 397-J to 397-I, s.2.

⁵Added by the Islamia University of Bahawalpur (Amendment) Ordinance, 1984 (XIX of 1984); and published in the Punjab Gazette (Extraordinary), dated 16.12.1984, s.2.

⁶Omitted by the Islamia University of Bahawalpur University (Amendment) Ordinance, 1980 (XVI of 1980); and published in the Punjab Gazette (Extraordinary), dated 22.12.1980, pages 1287-M to 1287-P, s. 2(2).

⁷Added by the Islamia University of Bahawalpur (Amendment) Act, 1975 (XX of 1975); and published in the Punjab Gazette (Extraordinary) dated 12.3.75, pages 176-C to 176-D, s.2.

⁸Inserted by the University Laws (Amendment) Ordinance, 1983 (IX of 1983); and published in the Punjab Gazette (Extraordinary), dated 28.4.1983, pages 219-221, s.2 and Schedule, at serial No.4.

order has been passed by any Authority for the purpose of satisfying himself as to the correctness, legality or propriety of any finding or order and may pass such orders as he may deem fit.]

⁹[Provided that no order under this section shall be passed unless the person to be affected thereby is afforded an opportunity of being heard.]

12. Visitation.— (1) The Chancellor may cause an inspection or inquiry to be made in respect of any matter connected with the University and shall from time to time, appoint such person or persons as he may deem fit, for the purposes of carrying out inspection of—

- (i) the University, its buildings, Laboratories, Libraries, Museums, Workshops and equipment;
- (ii) any institution, college or hostel maintained or recognized by, or affiliated to the University;
- (iii) the teaching and other work conducted by the University; and
- (iv) the conduct of examinations held by the University.

The Chancellor shall, in every such case, give notice to the Syndicate of his intention to cause an inspection or inquiry to be made and the Syndicate shall be entitled to be represented thereat.

(2) The Chancellor shall communicate to the Syndicate his views with regard to the results of such inspection or inquiry and shall, after ascertaining the views thereon of the Syndicate, advise the Syndicate, on the action to be taken.

(3) The Syndicate shall communicate to the Chancellor such action, if any, as has been taken or may be proposed to be taken upon the results of the inspection or inquiry. Such communication shall be submitted to the Chancellor within such time as may be specified by the Chancellor.

(4) Where the Syndicate does not, within a reasonable time, take action to the satisfaction of the Chancellor, the Chancellor may, after considering any explanation furnished or representation made by the Syndicate, issue such directions as he thinks fit, and the Vice-Chancellor shall comply with such directions.

13. Pro-Chancellor.— (1) The Minister for Education, Government of the Punjab shall be the Pro-Chancellor of the University.

(2) He shall perform such duties and functions and exercise such powers as may be assigned and delegated to him by the Chancellor.

¹⁰**[14. Vice-Chancellor.**— (1) A person, who is eligible and who is not more than sixty five years of age on the last date fixed for submission of applications for the post of the Vice Chancellor may apply for the post.

⁹Added by the Islamia University of Bahawalpur (Amendment) Ordinance, 1984 (XIX of 1984); and published in the Punjab Gazette (Extraordinary), dated 16.12.1984, s.2.

¹⁰Substituted by the Public Sector Universities (Amendment) Act 2012 (LX of 2012); and published in the Punjab Gazette (Extraordinary), dated 14.11.2012, pages 1581-1593, s.5.

(2) The Government shall determine, by notification in the official Gazette, the qualifications, experience and other relevant requirements for the post of the Vice Chancellor.

(3) The Government shall constitute, for a term of two years, a Search Committee consisting of not less than three and not more than five members for making recommendations for appointment of the Vice Chancellor.

(4) The Search Committee shall follow such procedure and criteria, for selection of the panel for the post of the Vice Chancellor, as the Government may, by notification, determine.

(5) The Search Committee shall recommend to the Government, in alphabetical order without any preference, a panel of three persons who, in its opinion, are suitable for appointment as the Vice Chancellor.

(6) The Chancellor shall appoint the Vice Chancellor for each term of four years but he shall serve during the pleasure of the Chancellor.

(7) The Government shall determine the terms and conditions of service of the Vice Chancellor.

(8) The incumbent Vice Chancellor shall not be allowed any extension in his tenure but subject to eligibility he may again compete for the post of the Vice Chancellor in accordance with the procedure prescribed by or under this section.

(9) If the office of the Vice Chancellor is vacant or the Vice Chancellor is absent or is unable to perform the functions of the Vice Chancellor owing to any cause, the Pro-Vice Chancellor shall perform the functions of the Vice Chancellor but, if at any time, the office of Pro-Vice Chancellor is also vacant or the Pro-Vice Chancellor is absent or is unable to perform the functions of the Vice Chancellor owing to any cause, the Chancellor shall make such temporary arrangements for the performance of the duties of the Vice Chancellor as he may deem fit.]

15. Powers and duties of the Vice-Chancellor.– (1) The Vice-Chancellor shall be the principal executive and academic officer of the University and shall ensure that the provisions of this Act, the Statutes, the Regulations, and the Rules are faithfully observed in order to promote teaching, research, publication, administration and the general efficiency and good order of the University. He shall have all powers necessary for this purpose including administrative control over all officers, teachers and other employees of the University.

(2) The Vice-Chancellor shall preside at the meetings of the Authorities of which he is the Chairman and be entitled to attend and preside at any meeting of any other Authority or body of the University.

¹¹[(3) Subject to such conditions as may be prescribed, the Vice Chancellor may, in an emergency, take an action which is not otherwise in the competence of the Vice Chancellor but is in the competence of any other Authority.

(3a) The Vice Chancellor shall, within seven days of taking an action under sub-section (3), submit a report of the action taken to the Pro-Chancellor and to the members of the Syndicate; and, the Syndicate shall, within forty five days of such an

¹¹Substituted by the Public Sector Universities (Amendment) Act 2012 (LX of 2012); and published in the Punjab Gazette (Extraordinary), dated 14.11.2012, pages 1581-1593, s.5.

action of the Vice-Chancellor, pass such orders as the Syndicate deems appropriate.]

(4) The Vice-Chancellor shall also have the powers—

- (i) ¹²[* * * * *]
- (ii) to sanction all expenditure provided for in the approved budget, and to re appropriate funds within the same major head of expenditure;
- (iii) to sanction by re-appropriation an amount not exceeding Rs. 5000 for an unforeseen item not provided for in the budget, and report it to the Syndicate at the next meeting;
- (iv) to appoint paper setters and examiners for all examinations of the University after receiving panels of names from the relevant Authorities;
- (v) to make such arrangements for the scrutiny of papers, marks and results as he may consider necessary;
- (vi) to direct teachers, officers and other employees of the University to take up such assignments in connection with teaching, research, examinations, administration and such other activities in the University as he may consider necessary for the purpose of the University;
- (vii) to delegate, subject to such conditions, if any as may be prescribed, any of his powers under this Act to an officer or officers of the University;
- (viii) to appoint employees below the initial monthly pay of Rs. 500; and
- (ix) to exercise and perform such other powers and functions as may be prescribed.

¹³¹⁴[**15A. Pro Vice-Chancellor.**— (1) The Chancellor shall nominate the Pro-Vice Chancellor of the University, from amongst three senior most Professors of the University, for a term of three years.

(2) The Pro-Vice Chancellor shall perform such functions as may be assigned to him under this Act, statutes or regulations.

(3) The Syndicate or the Vice Chancellor may assign any other functions to the Pro-Vice Chancellor in addition to his duties as Professor.]]

16. Registrar.— The Registrar shall be a whole time officer of the University and shall be appointed by the Syndicate on such terms and conditions as may be determined by it. He shall—

¹²Deleted by the Public Sector Universities (Amendment) Act 2012 (LX of 2012); and published in the Punjab Gazette (Extraordinary), dated 14.11.2012, pages 1581-1593, s.5.

¹³Added by the Islamia University of Bahawalpur University (Amendment) Ordinance, 1980 (XVI of 1980); and published in the Punjab Gazette (Extraordinary), dated 22.12.1980, pages 1287-M to 1287-P, s.2(3).

¹⁴Substituted by the Public Sector Universities (Amendment) Act 2012 (LX of 2012); and published in the Punjab Gazette (Extraordinary), dated 14.11.2012, pages 1581-1593, s.5.

- (a) be the custodian of the Common Seal and the academic records of the University;
- (b) maintain a Register of Registered Graduates in the prescribed manner;
- (c) conduct elections of members to the various Authorities in the prescribed manner; and
- (d) perform such other duties as may be prescribed.

17. Treasurer.— The Treasurer shall be a whole time officer of the University and shall be appointed by the Chancellor on such terms and conditions as the Chancellor may determine. He shall—

- (a) manage the property, the finances, and the investments of the University;
- (b) prepare the annual and revised budget estimates of the University and present them to the Finance and Planning Committee, the Syndicate and the Senate;
- (c) ensure that the funds of the University are expended on the purposes for which they are provided; and
- (d) perform such other duties as may be prescribed.

18. Controller of Examinations.— The Controller of Examinations shall be a whole time officer of the University, and shall be appointed by the Syndicate on such terms and conditions as may be determined by it. He shall be responsible for all matters connected with the conduct of examinations and perform such other duties as may be prescribed.

19. Auditor.— The Resident Auditor shall be taken from Government on deputation.

20. Other Officers.— Subject to the provisions of this Act, the terms and conditions of service and the powers and duties of other officers of the University shall be such as may be prescribed.

CHAPTER IV

21. Authorities.— The following shall be Authorities of the University:—

- (i) the Senate;
- (ii) the Syndicate;
- (iii) the Academic Council;
- (iv) the Board of Faculties;
- (v) the Board of Studies;
- (vi) the Advanced Studies and Research Board;
- (vii) the Selection Board;
- (viii) Finance and Planning Committee;
- (ix) the Affiliation Committee;

- (x) the Discipline Committee;
- (xi) such other Authorities as may be prescribed by Statutes.

22. The Senate.– (1) The Senate shall consist of–

- (i) the Chancellor;
- (ii) the ¹⁵[Pro-Chancellor];
- (iii) the Vice-Chancellor;
- (iv) the Members of the Syndicate;
- (v) the Deans;
- (vi) the Directors of Institutes;
- (vii) the Principals of the Constituent Colleges;
- (viii) the University Professors and Professors Emeritus;
- (ix) the Chairmen of the Teaching Departments;
- (x) the Officer or Teacher Incharge of Students Affairs (by whatever designation called);
- (xi) as many University teachers as may be prescribed subject to the maximum of five ¹⁶[including at least two female teachers] having at least three years service to be elected by the University teachers from amongst themselves;
- (xii) two Principals of Affiliated Colleges ¹⁷[including at least one female Principal] to be elected by the Principals of all such Colleges from amongst themselves;
- (xiii) the teachers from the Affiliated Colleges having at least three years service subject to the maximum of five ¹⁸[including at least two women] to be elected from amongst themselves;
- (xiv) all the Chairmen of the Boards of Intermediate and Secondary Education in the Punjab and the Chairman, Board of Technical Education;
- (xv) two students representatives ¹⁹[including at least one female representative] of the University Students Unions and one representative of the Unions of the Affiliated Colleges to be elected by the Presidents of the Students Unions of those colleges;

¹⁵Misprinted in the Gazette as “the Chancellor” is corrected.

¹⁶Inserted by the Punjab Fair Representation of Women Act 2014 (IV of 2014); and published in the Punjab Gazette (Extraordinary), dated 12.3.2014, pages 2733-2744, see s.2 and Schedule, at serial No.14.

¹⁷Inserted by the Punjab Fair Representation of Women Act 2014 (IV of 2014); and published in the Punjab Gazette (Extraordinary), dated 12.3.2014, pages 2733-2744, see s.2 and Schedule, at serial No.14.

¹⁸Inserted by the Punjab Fair Representation of Women Act 2014 (IV of 2014); and published in the Punjab Gazette (Extraordinary), dated 12.3.2014, pages 2733-2744, see s.2 and Schedule, at serial No.14.

¹⁹Inserted by the Punjab Fair Representation of Women Act 2014 (IV of 2014); and published in the Punjab Gazette (Extraordinary), dated 12.3.2014, pages 2733-2744, see s.2 and Schedule, at serial No.14.

- (xvi) two Registered Graduates ²⁰[including at least one woman] to be elected by all such Graduates from amongst themselves;
- (xvii) three persons ²¹[including at least one woman] eminent in the Islamic learning, the Arts, the Sciences and the Professions, to be nominated by the Chancellor;
- (xviii) the Registrar;
- (xix) the Treasurer;
- (xx) the Controller of Examinations;
- (xxi) the Librarian;
- ²²[(xxii) members of the Provincial Assembly of the Punjab to be elected in the following manner:—
 - a) one member from each Division excluding Bahawalpur Division to be elected by the Members of the Provincial Assembly from that Division; and
 - b) one member from each District of the Bahawalpur Division to be elected by the Member of the Provincial Assembly from that Division; and]
- (xxiii) all the Regional Directors of Education and the Director of Technical Education Punjab.

The Chancellor, or in his absence, his nominee shall be the Chairman of the Senate.

(2) Members of the Senate, other than ex-officio members, shall hold office for three years.

(3) The Senate shall meet at least twice in every year on dates to be fixed by the Vice-Chancellor with the consent of the Chancellor.

(4) The quorum for a meeting of the Senate shall be one-third of the total number of members, a fraction being counted as one

23. Powers and duties of the Senate.— Subject to the provisions of this Act, the Senate shall have the powers—

- (a) to consider the drafts of Statutes proposed by the Syndicate and deal with them in the manner indicated in sub-section (2) of section 30;
- (b) to consider and pass resolutions on the annual report, the annual statement of accounts and the annual and revised budget estimates;
- (c) to appoint members to the Syndicate and other Authorities in accordance with the provisions of this Act;

²⁰Inserted by the Punjab Fair Representation of Women Act 2014 (IV of 2014); and published in the Punjab Gazette (Extraordinary), dated 12.3.2014, pages 2733-2744, see s.2 and Schedule, at serial No.14.

²¹Inserted by the Punjab Fair Representation of Women Act 2014 (IV of 2014); and published in the Punjab Gazette (Extraordinary), dated 12.3.2014, pages 2733-2744, see s.2 and Schedule, at serial No.14.

²²Substituted by the Islamia University of Bahawalpur (Amendment) Act, 1985(III of 1985); and published in the Punjab Gazette (Extraordinary), dated 7.11.1985., pages 5228-C to 5228-D, s.2.

- (d) to delegate any of its powers to an Authority or Officer of a Committee or Sub-Committee; and
- (e) to perform such other functions as may be prescribed by Statutes.

24. The Syndicate.—²³[(1) The Syndicate shall consist of—

- (i) the Vice-Chancellor, who shall be its Chairman;
- (ii) the Pro-Vice-Chancellor, if any;
- ²⁴[(iii) three members of Provincial Assembly of the Punjab, including at least one female member of the Assembly, to be nominated by the Speaker of the Assembly;]
- (iv) two members ²⁵[including at least one female member] of the Senate ²⁶[***] to be elected by the Senate;
- (v) the Chief Justice of the Lahore High Court, Lahore or his nominee from amongst the Judges of the Lahore High Court;
- (vi) Secretary to Government of the Punjab, Education Department ²⁷[or his nominee not below the rank of Additional Secretary];
- ²⁸[(vi-A) Secretary to Government of the Punjab, Finance Department or his nominee not below the rank of Additional Secretary;]
- (vii) one nominee of the University Grants Commission;
- (viii) one Dean to be nominated by the Chancellor on the recommendation of the Vice-Chancellor;
- ²⁹[(ix) one Professor, one Associate Professor, one Assistant Professor and one such Lecturer ³⁰[out of whom at least one shall be a woman] as has completed a minimum of two years service in the University to be elected respectively by and from amongst themselves];

²³Substituted by the Islamia University of Bahawalpur University (Amendment) Ordinance, 1980 (XVI of 1980); and published in the Punjab Gazette (Extraordinary), dated 22.12.1980, pages 1287-M to 1287-P, s.2(4)(a).

²⁴Substituted by the Universities and Institutes Laws (Amendment) Act 2025 (LXIII of 2025), published in the Punjab Gazette (Extraordinary), dated 05.08.2025, pages 615-618, see s.2 and Schedule, at serial 5.

²⁵Inserted by the Punjab Fair Representation of Women Act 2014 (IV of 2014); and published in the Punjab Gazette (Extraordinary), dated 12.3.2014, pages 2733-2744, see s.2 and Schedule, at serial No.14.

²⁶The words “other than employees of Punjab University or affiliated colleges” deleted by the Islamia University of Bahawalpur University (Amendment) Ordinance, 1981 (XI of 1981); and published in the Punjab Gazette (Extraordinary), dated 4.6.1981, pages 397-J to 397-I, s.3.

²⁷Inserted by the Islamia University of Bahawalpur (Amendment) Act, 1985(III of 1985); and published in the Punjab Gazette (Extraordinary), dated 7.11.1985., pages 5228-C to 5228-D, s.2.

²⁸Inserted by the Islamia University of Bahawalpur (Amendment) Act, 1985(III of 1985); and published in the Punjab Gazette (Extraordinary), dated 7.11.1985., pages 5228-C to 5228-D, s.2.

²⁹Substituted by the Islamia University of Bahawalpur University (Amendment) Ordinance, 1981 (XI of 1981); and published in the Punjab Gazette (Extraordinary), dated 4.6.1981, pages 397-J to 397-I, s.3

³⁰Inserted by the Punjab Fair Representation of Women Act 2014 (IV of 2014); and published in the Punjab Gazette (Extraordinary), dated 12.3.2014, pages 2733-2744, see s.2 and Schedule, at serial No.14.

- (x) three persons of eminence ³¹[including one Scholar of Islamic Jurisprudence and one woman not serving in any Educational institution] to be nominated by the Chancellor;
 - (xi) one ³²[female] Principal of the affiliated colleges to be nominated by the Chancellor; and
 - (xii) the President of the University Students Union.]
- (2) Members of the Syndicate other than ex-officio member shall, hold office for ³³[three] years.
- (3) The quorum for a meeting of the Syndicate shall be one half of the total number of members, a fraction being counted as one.

25. Powers and duties of Syndicate.— (1) The Syndicate shall be the Executive Body of the University and shall subject to the provisions of this Act, and the Statutes, take effective measures to raise the standards of teaching, research and publication and other academic pursuits and exercise general supervision over the affairs and management of the property of the University.

(2) Without prejudice to the generality of the foregoing powers, and subject to the provisions of this Act and the Statutes, the Syndicate shall have the powers:—

- (a) to take effective measures to raise the standards of teaching, research and publication in the light of national needs;
- (b) to hold control and administer the property and funds of the University;
- (c) to govern and regulate, with due regard to the advice of the Finance and Planning Committee in this behalf, the finances, accounts and investments of the University and for that purpose, to appoint such agents as it may think fit;
- (d) to consider the annual report, the annual and revised budget estimates and to advise the Senate thereon, and to reappropriate funds from one major head of expenditure to another;
- (e) to transfer and accept transfer of movable or immovable property on behalf of the University;
- (f) to enter into, vary, carry out and cancel contracts on behalf of the University;
- (g) to cause proper books of accounts to be kept for all sums of money received and expended by the University and for assets and liabilities of the University;

³¹Added by the Islamia University of Bahawalpur University (Amendment) Ordinance, 1981 (XI of 1981); and published in the Punjab Gazette (Extraordinary), dated 4.6.1981, pages 397-G to 397-I, s.3

³²Inserted by the Punjab Fair Representation of Women Act 2014 (IV of 2014); and published in the Punjab Gazette (Extraordinary), dated 12.3.2014, pages 2733-2744, see s.2 and Schedule, at serial No.14.

³³Substituted for the word "two" by the Islamia University of Bahawalpur University (Amendment) Ordinance, 1981 (XI of 1981); and published in the Punjab Gazette (Extraordinary), dated 4.6.1981, pages 397-J to 397-I, s.3. Earlier substituted for the word "three" by the Islamia University of Bahawalpur University (Amendment) Ordinance, 1980 (XVI of 1980); and published in the Punjab Gazette (Extraordinary), dated 22.12.1980, pages 1287-M to 1287-P, s.2(4)(b).

- (h) to invest any money belonging to the University including any unapplied income in any of the securities described in section 20 of the Trust Act, 1882, or in the purchase of immovable property or in such other manner as it may determine, with the like power of varying such investments;
- (i) to receive and manage any property transferred, grants, bequests, trusts, gifts, donations, endowments and other contributions made to the University;
- (j) to administer any funds placed at the disposal of the University for specified purposes;
- (k) to determine the form provided for the custody and regulate the use of the Common seal of the University;
- (l) to provide the buildings, libraries, premises, furniture, apparatus, equipment and other means required for carrying out the work of the University;
- (m) to establish and maintain halls of residence and hostels or lodgings for the residence of students;
- (n) to affiliate and disaffiliate colleges;
- (o) to admit educational institutions to the privileges of the University and withdraw such privileges;
- (p) to arrange for the inspection of colleges and the Teaching Departments;
- (q) to institute Professorship, Associate Professorship, Assistant Professorship, Lectureship and other teaching posts; or to suspend or abolish such posts;
- (r) to create, suspend or abolish such administrative, research, extension or other posts as may be necessary;
- (s) to appoint University Teachers and other Officers on the recommendation of the Selection Board for Teaching and other posts in the initial pay of Rs. 500/- per mensem or above;
- (t) to appoint Professor Emeritus on such terms and conditions as may be prescribed;
- (u) to confer Honorary Degrees in accordance with the conditions prescribed;
- (v) to prescribe the duties of Officers, Teachers and other employees of the University;
- (w) to suspend, punish and remove from service Officers (Other than the Vice-Chancellor), Teachers and other Employees in the manner prescribed;
- (x) to report to the Senate on matter on which it has been asked to report;
- (y) to appoint members to the various Authorities in accordance with the provisions of this Act;

- (z) to propose drafts for Statutes for submission to the Senate;
- (aa) to consider and deal in the manner prescribed in sub-section (2) of section 31 the Regulations made by the Academic Council; provided that the Syndicate may frame a Regulation at its own initiative and approve it after calling for the advice of the Academic Council;
- (bb) to regulate, determine and administer all other matters concerning the University and to this end exercise all other powers in this behalf not specifically mentioned in this Act and the Statutes;
- (cc) to delegate any of its powers to an Authority or a Committee or Sub-Committee; and
- (dd) to perform such other function as have been assigned to it by the other provisions of this Act or the Statutes.

26. The Academic Council.— (1) The Academic Council shall consist of—

- (i) the Vice-Chancellor (Chairman);
- (ii) the Deans;
- (iii) the Director of Institutes;
- (iv) the Principals of the Constituent Colleges;
- (v) the University Professors including Professors Emeritus;
- (vi) the Chairmen of the Teaching Departments;
- (vii) Education Secretary, the Regional Directors of Education and the Director of Technical Education, Punjab;
- (viii) one Associate Professor, other than Chairmen of the Teaching Departments, to be elected by and from among themselves;
- (ix) one Assistant Professor and two Lecturers ³⁴[out of whom at least one shall be a woman] to be elected by and from among themselves;
- (x) three Principals of Affiliated Colleges to be elected by the Principals of all such colleges from among themselves, of whom at least one shall be from professional colleges and one from the women's colleges;
- (xi) three teachers of Affiliated Colleges having at least five years service in an Affiliated college, other than the Principals, to be elected by the teachers of all such colleges from amongst themselves, of whom at least one shall be from professionals colleges and one from the women's colleges;
- (xii) three persons ³⁵[including at least one woman] eminent in the Islamic Learning, Arts, the Sciences and the Professions, of whom one shall be from each category to be nominated by the Chancellor;
- (xiii) the Registrar;

³⁴Inserted by the Punjab Fair Representation of Women Act 2014 (IV of 2014); and published in the Punjab Gazette (Extraordinary), dated 12.3.2014, pages 2733-2744, see s.2 and Schedule, at serial No.14.

³⁵Inserted by the Punjab Fair Representation of Women Act 2014 (IV of 2014); and published in the Punjab Gazette (Extraordinary), dated 12.3.2014, pages 2733-2744, see s.2 and Schedule, at serial No.14.

- (xiv) the Librarian; and
- (xv) the Controller of Examinations.

(2) Members appointed by nomination or election shall hold office for three years.

(3) The quorum for a meeting of the Academic Council shall be one third of the total number of members.

27. Powers and duties of Academic Council.– (1) The Academic Council shall be the academic Body of the University and shall, subject to the provisions of this Act and the Statutes, have the power to lay down proper standards of instructions, research publication and examinations and to regulate and promote the academic life of the University and the Colleges.

(2) Without prejudice to the generality of the foregoing powers, and subject to the provisions of this Act and the Statutes, the Academic Council shall have the powers:–

- (a) to advise the Syndicate on academic matters;
- (b) to regulate the conduct of teaching, research, publication and examinations;
- (c) to regulate the admission of students to the courses of studies and examinations in the University;
- (d) to regulate the conduct and discipline of the students of the University;
- (e) to propose to the Syndicate scheme for the constitution and organization of Faculties, Teaching Departments and Board of Studies;
- (f) to consider or formulate proposals for the planning and development of teaching and research in the University;
- (g) to make Regulations, on the recommendations of the Boards of Faculties and the Boards of Studies, prescribing the courses of studies, the syllabi and the outlines of tests for all University examinations; provided that if the recommendations of the Board of a Faculty or a Board of Studies are not received by the prescribed date, the Academic Council may, subject to the approval of the Syndicate, continue for the next year the courses of studies already prescribed for an examination;
- (h) to recognize the examinations of other Universities, examining bodies as equivalent to the corresponding examinations of the University;
- (i) to regulate the award or studentships, scholarships, exhibitions, medals and prizes;
- (j) to frame regulations for submission to the Syndicate;
- (k) to appoint members to the various Authorities in accordance with the provisions of this Act; and
- (l) to perform such other functions as may be prescribed by Statutes.

28. Constitution, functions and powers of other authorities.— The Constitution, functions and powers of the Authorities for which no specific provisions have been made in this Act, shall be such as may be prescribed by Statutes.

29. Appointment of Committee by certain Authorities.— The Senate, the Syndicate, the Academic Council and other Authorities may, from time to time, appoint such standing, special or advisory committees as they may deem fit and may nominate such persons on these committees as are not members of the Authorities appointing the committees.

CHAPTER V STATUTES, REGULATIONS AND RULES

30. Statutes.— (1) Subject to the provisions of this Act, Statutes may be made to regulate or prescribe all or any of the following matters:—

- (a) the constitution of pension, insurance, gratuity, provident fund and benevolent fund for University employees;
- (b) the scales of pay and other terms and conditions of service of Officers, Teachers and other employees of the University;
- (c) the maintenance of the Register of Registered Graduates;
- (d) affiliation and disaffiliation of educational institutions and related matters;
- (e) admission of educational institutions to the privileges of the University and the withdrawal of such privileges;
- (f) the conduct of elections for membership of the Authorities of the University and related matters;
- (g) the establishment of Faculties, Institutes, Colleges and other Academic Divisions;
- (h) the powers and duties of Officers and Teachers;
- (i) conditions under which the University may enter into arrangements with other Institutions or with public bodies for purposes of research and advisory services;
- (j) conditions for appointment of Professors Emeritus and award of honorary degrees;
- (k) efficiency and discipline of University employees;
- (l) the general scheme of studies including the duration of courses and the number of subjects and papers for an examination; and
- (m) all other matters which, by this Act are to be or may be prescribed or regulated by Statutes.

(2) The draft of Statutes shall be proposed by the Syndicate to the Senate which may approve it, or pass it with such modifications as the Senate may think fit, or may refer it back to the Syndicate for reconsideration, or may reject it:

Provided that—

- (i) the Syndicate shall not propose draft of Statutes affecting the constitution or powers of any Authority of the University, until such Authority has been given an opportunity of expressing an opinion in writing upon the proposals;
- (ii) the draft of Statutes concerning any of the matters mentioned in clauses (a) and (b) of sub section (1) of this section shall be forwarded to the Chancellor and shall not be effective until it has been approved by the Chancellor; and
- (iii) the Syndicate or the Senate shall not have the power to make any Statutes concerning efficiency and discipline of officers, teachers, and other employees of the University and such Statutes may be made by the Chancellor.

31. Regulations.— (1) Subject to the provisions of this Act, and the Statutes, Regulations may be made for all or any of the following matters:—

- (a) courses of study for degrees, diplomas and certificates of the University;
- (b) manner in which the recognized teaching referred to in sub-section (1) of section 8 shall be organized and conducted;
- (c) admission of students to the University;
- (d) conditions under which students shall be admitted to the courses and the examinations of the University and shall become eligible for the award of degrees, diplomas and certificates;
- (e) conduct of examinations;
- (f) fees and other charges to be paid by students for admission to the courses of study and the examination of the University;
- (g) conduct and discipline of students of the University;
- (h) conditions of residence of the students of the University or the colleges, including the levying of fees for residence in halls of residence and hostels;
- (i) approval and licensing of hostels and lodgings;
- (j) conditions under which a person should carry on independent research to entitle him to a degree;
- (k) institution of fellowships, scholarships, exhibitions, medals and prizes;
- (l) institution of stipends and free and half free studentships;
- (m) academic costume;
- (n) use of the library;
- (o) formation of Teaching Departments and Boards of Studies; and
- (p) all other matters which by this Act and the Statutes are to be or may be prescribed by Regulations.

(2) The Regulations shall be prepared by the Academic Council and shall be submitted to the Syndicate which may approve them or withhold approval or refer

them back to the Academic Council for reconsideration. A Regulation prepared by the Academic Council shall not be valid, unless it receives the approval of the Syndicate.

32. Amendment and repeal of Statutes and Regulations.— The procedure for adding to, amending or repealing the Statutes and the Regulations shall be the same as that prescribed respectively for forming or making Statutes and Regulations.

33. Rules.— (1) The Authorities and the other bodies of the University may make Rules, consistent with this Act, the Statutes and the Regulations, to regulate the conduct of their business and the time and place of meetings and related matters:

Provided that the Syndicate may direct the amendment or the annulment of any Rules made under this Act by another Authority or Body other than the Senate; and

Provided further that, if such other Authority or body is dissatisfied with such direction it may appeal to the Senate whose decision in the matter shall be final.

(2) The Syndicate may make Rules to regulate any matter relating to the affairs of the University, which by this Act, has not to be specifically provided for in the Statutes or Regulations.

CHAPTER VI

AFFILIATION OF EDUCATIONAL INSTITUTIONS TO THE UNIVERSITY

34. Affiliation.— (1) An educational institution applying for affiliation to the University shall make an application to the University and shall satisfy it—

- (a) that the educational institution is under the management of the Government or of a regularly constituted governing body;
- (b) that the financial resources of the educational institution are sufficient to enable it to make due provision for its continued maintenance and efficient working;
- (c) that the strength and qualifications of the teaching and other staff, and the terms and conditions of their service, are adequate to make due provision for the courses of instruction, teaching or training to be undertaken by the educational institution;
- (d) that the educational institution has framed proper rules regarding the efficiency and discipline of its staff and other employees;
- (e) that the building in which the educational institution is to be located is suitable, and that provisions will be made, in conformity with the Statutes and Regulations for—
 - (i) the residence of students, not residing with their parents or guardians, in the hostels established and maintained by the educational institution or in hostels or lodgings approved by it; and
 - (ii) the supervision and physical and general welfare of students;

- (f) that provision has been made for a library and adequate library services;
- (g) that where affiliation is sought in any branch of experimental sciences, due arrangements have been made for imparting instruction in that branch of science in a properly equipped laboratory, museum and other places of practical work;
- (h) that due provision will, so far as circumstances may permit, be made for the residence of the Principal and members of the teaching staff in or near the college or place provided for the residence of students; and
- (i) that the affiliation of the educational institution will not be injurious to the interests of education or discipline of educational institutions in its neighborhood.

(2) The application shall further contain an undertaking that after the educational institution is affiliated, any transference of and changes in the management and in the teaching staff, save in the case of Government Colleges, shall be forthwith reported to the University and that the teaching staff shall possess such qualifications as are or may be prescribed.

(3) The procedure to be followed in disposing of an application for the affiliation of an educational institution shall be such as may be prescribed.

(4) The Syndicate may, on the recommendations of the Affiliation Committee, grant or refuse affiliation to an educational institution:

Provided that affiliation shall not be refused unless the educational institution has been given an opportunity of making a representation against the proposed decision.

35. Addition of courses by affiliated educational intuition.— Where an educational institution desires to add to the courses of instruction in respect of which it is affiliated the procedure prescribed under sub-section (3) of section 34 shall so far as may be, be followed.

36. Reports from affiliated educational institution.— (1) Every educational institution affiliated to the University shall furnish such reports, returns and other information as the University may require to enable it to judge the efficiency of the educational institution.

(2) The University may call upon any educational institution affiliated to it to take, within a specified period, such action as may appear to the University to be necessary in respect of any of the matters referred to in sub-section (1) of section 34.

37. Withdrawal of affiliation.— (1) If an educational institution affiliated to the University fails at any time to fulfill any of the requirements mentioned in this Act or if an educational institution has failed to observe any of the conditions of its affiliation, or its affairs are conducted in a manner which is prejudicial to the interests of education, the Syndicate may, on recommendation of the Affiliation Committee, and after considering such representation as the educational institution may wish to make, withdraw, either in whole or in part, the rights conferred on the educational institution by affiliation or modify such rights.

(2) The procedure to be followed for the withdrawal of affiliation shall be such as may be prescribed.

38. Appeal against refusal or withdrawal of affiliation.— An appeal shall lie to the Senate against the decision of the Syndicate refusing to affiliate an institution or withdrawing in whole or in part the rights conferred on an institution by affiliation, or modifying such rights.

³⁶[Provided that no order under this section shall be passed without affording an opportunity of being heard to the institution to be affected thereby.]

CHAPTER VII UNIVERSITY FUND

39. University Fund.— The University shall have a fund to which shall be credited its income from fees, donations, trusts, bequests, endowments, contributions, grants and all other sources.

³⁷**[39-A. Recovery of University dues.**— The University or any person generally or specially authorized by it may apply to the Collector for recovery of any sum due to the University under any bond and the Collector shall thereupon proceed to recover the sum due, as if it were an arrear of land revenue:

Provided that the University shall not take action unless the person concerned is given opportunity of being heard.]

40 Audit and Accounts.— (1) The accounts of the University shall be maintained in such form and in such manner as may be prescribed.

³⁸[(2) No expenditure shall be made from the funds of the University unless—

- (a) the expenditure is included in the approved budget of the University; and
- (b) a bill for its payment has been audited in conformity with the Statutes, the Regulations and the Rules by the Auditor appointed by the Government.]

(3) The annual statement of the accounts of the University signed by the Treasurer and the Auditor shall be submitted to the Government within six months of closing of financial year.

(4) The accounts of the University shall be audited once a year in conformity with the Statutes and Regulations and the Rules by the Auditor appointed by the Government for this purpose.

(5) The observations of Government Auditor, together with such annotations as the Treasurer may make, shall be presented to the Syndicate.

³⁶Added by the Islamia University of Bahawalpur (Amendment) Ordinance, 1984 (XIX of 1984); and published in the Punjab Gazette (Extraordinary), dated 16.12.1984, s.2.

³⁷Added by the Islamia University of Bahawalpur (Amendment) Act, 1976 (IV of 1976), dated 26.3.76, pages 489-490, s.2.

³⁸Substituted by the Islamia University of Bahawalpur University (Amendment) Ordinance, 1980 (XVI of 1980); and published in the Punjab Gazette (Extraordinary), dated 22.12.1980, pages 1287-M to 1287-P, s.2(5).

CHAPTER VIII GENERAL PROVISIONS

41 Opportunity to show cause.— An officer, ³⁹[other than the Chancellor, Pro-Chancellor and Vice Chancellor] teacher or other employee of the University shall retire from service—

(i) **Retirement from service.**— on such date, after he has completed twenty-five years of service qualifying for pension or other retirement benefits, as the Competent Authority may, in the public interest, direct; or

⁴⁰[(ii) where no direction is given under clause (i) on the completion of the sixtieth year of his age.]

Explanation— In this section “competent authority” means the appointing authority or a person duly authorized by the appointing authority in that behalf, not being a person lower in rank to the officer, teacher or other employee concerned.

42 Appeal to and review by the Syndicate.— Where an order is passed, punishing any officer, other than the Vice-Chancellor, teacher or other employee of the University or altering or interpreting to his disadvantage the prescribed terms or conditions of his service, he shall, where the order is passed by the Vice-Chancellor or any other officer or teacher of the University, have the right to appeal to the Syndicate against the order and where the order is made by the Syndicate have the right to apply to that Authority for review of that order. The appeal or applications for review shall be submitted to the Vice-Chancellor and he shall lay it before the Syndicate with his views.

⁴¹[Provided that no order under this section shall be passed unless an opportunity of being heard is afforded to the person to be affected thereby.]

43. Pension, Insurance, Gratuity, Provident Fund and Benevolent Fund.— (1) The University shall constitute for the benefit of its officers, teachers and other employees in such manner and subject to such conditions as may be prescribed such pension, insurance, gratuity, provident fund and benevolent fund schemes as it may deem fit.

(2) Where any provident fund has been constituted under this Act the provisions of the Provident Fund Act, 1925 (Act XIX of 1925) shall apply to such funds as if it were the Government Provident Fund.

⁴²**[43-A. Transfer and Posting.**— (1) Notwithstanding anything to the contrary contained in any agreement or contract or in any other law for the time being in

³⁹Inserted by the Public Sector Universities (Amendment) Act 2012 (LX of 2012); and published in the Punjab Gazette (Extraordinary), dated 14.11.2012, pages 1581-1593, s.5.

⁴⁰Substituted by the Universities Laws (Amendment) Ordinance, 1977 (VII of 1977); and published in the Punjab Gazette (Extraordinary), dated 17.12.1977, pages 489-490, s.2 and Schedule, at serial No.5.

⁴¹Added by the Islamia University of Bahawalpur (Amendment) Ordinance, 1984 (XIX of 1984); and published in the Punjab Gazette (Extraordinary), dated 16.12.1984, s.2.

⁴²Added by the Islamia University of Bahawalpur University (Amendment) Ordinance, 1980 (XVI of 1980); and published in the Punjab Gazette (Extraordinary), dated 22.12.1980, pages 1287-M to 1287-P, s.2(6), and substituted by the Islamia University of Bahawalpur University (Amendment) Ordinance, 1981 (XI of 1981); and published in the Punjab Gazette (Extraordinary), dated 4.6.1981, pages 397-J to 397-I, s.4

force, but subject to the provisions of the Act, an officer, teacher or other employee, shall, if the Chancellor so directs in the public interest, serve for such period as may be fixed or extended from time to time by the Chancellor, in any post in a Government Department or an educational or research institution set up or established by Government or a university in the Province of the Punjab and on terms and conditions not less favorable than those admissible to him in the University and with full benefits of his previous service;

Provided that in the case of a teacher, such direction shall not be made without consulting the Syndicate.

(2) The Chancellor may fill any post in the University by appointing a person in the service of Government, or an officer, teacher or other employee of any other university or educational or research institution set up or established by Government or a university in the province of the Punjab;

Provided that in the case of a teaching post in the University, the appointment shall not be made without consulting the Selection Board of the University.]

44. Commencement of term of members of Authorities.— (1) When a member of a newly constituted Authority is elected, appointed or nominated, his term of office, as fixed under this Act, shall commence from such date as may be prescribed.

(2) Nothing in sub-section (1) shall affect the provision of section 47.

45. Filling of casual vacancies in Authorities.— (1) Any casual vacancy among the elected, appointed or nominated members of any Authority shall be filled as may be by the person or persons, or the body who elected, appointed or nominated the member whose place has become vacant and the person elected, appointed or nominated to the vacancy shall be a member of such Authority for the residue of the term for which the person whose place he fills, would have been a member.

(2) Whenever there occurs a vacancy in the constitution of any Authority, as constituted by this Act, because of the abolition of a specified office under the Government or because an organization, institution or other body outside the University has been dissolved or has ceased to function, or because of some other similar reason, it shall be filled in such manner as the Chancellor may direct.

46. Disputes about membership of Authorities.— If a question arises whether any person is entitled to be a member of any Authority, the matter shall be referred to a Committee consisting of the Vice-Chancellor and the Secretary Education and the senior most Dean who are members of the Syndicate and the decision of this Committee shall be final and binding.

47. Proceedings of Authorities not invalidated by vacancies.— No act, proceeding, resolution or decision of any Authority shall be invalid by reason of any vacancy on the Authority doing, passing, or making it or by reason of any want of qualification or invalidity in the election, appointment, or nomination of any *defacto* member of the Authority, whether present or absent.

48. First Statutes.— Notwithstanding anything to the contrary contained in this Act, the Statutes set out in the Schedule appended to this Act shall be deemed to be the Statutes framed under section 30 of this Act and shall continue to remain in force until amended or repealed.

49. Repeal and savings.— (1) The West Pakistan Jamia Islamia (Bahawalpur) Ordinance, 1964, hereinafter referred to as the said Ordinance, is hereby repealed.

(2) Notwithstanding the repeal of the said Ordinance—

- (a) everything done, action taken, obligations or liabilities incurred, rights and assets acquired, persons appointed or authorized, jurisdiction or powers conferred, endowments, bequests, funds or trusts created, donations or grants made, scholarships, studentships or exhibitions instituted, affiliations or privileges granted and orders issued under any of the provisions of the said Ordinance or the Statutes, the Regulations and the Rules made or deemed to have been made there under, shall, if not inconsistent with the provisions of this Act or the Statutes, the Regulations or the Rules made under this Act be continued and, so far as may be, be deemed to have been respectively done, taken, incurred, acquired, appointed, authorized, conferred, created, made, instituted, granted and issued under this Act, and any document referring to any of the provisions of the said Ordinance, the Statutes, the Regulations and the Rules first referred to, shall so far as may be, be considered to, refer to the corresponding provisions of this Act or the Statutes, the Regulations and the Rules made under this Act; and
- (b) any Statutes, Regulations or Rules made or deemed to have been made under the said Ordinance, shall, if not inconsistent with the provisions of this Act, be deemed to be Statutes, Regulations or Rules made under this Act and shall, having regard to the various matters which by this Act have to be regulated or prescribed by Statutes, Regulations or Rules respectively continue to be in force, until they are repealed, rescinded or modified in accordance with the provisions of this Act.

50. Transitory provisions.— (1) Notwithstanding the provisions of section 49 the Board of Governors as constituted immediately before the commencement of this Act, shall cease to exist and a Chancellor's Committee shall be constituted by the Chancellor on the recommendations of the Vice-Chancellor to exercise the powers assigned to the Senate and the Syndicate under this Act till such time the Syndicate, or as the case may be the Senate is constituted in accordance with the provisions of this Act.

(2) Other Authorities constituted under the West Pakistan Jamia Islamia (Bahawalpur) Ordinance, 1964, shall continue to function and shall, as far as may be, exercise the powers respectively assigned to the corresponding Authorities by or under this Act till such time those Authorities are constituted in accordance with the provisions of this Act.

51. Removal of difficulties at the commencement of the Act.— If any difficulty arises as to the first constitution or reconstitution of any Authority after the commencement of this Act or otherwise is first giving effect to the provisions of this Act, the Chancellor may, on the recommendation of the Vice-Chancellor, give appropriate directions to remove such difficulty.

SCHEDULE

The first Statutes of the Islamia University, Bahawalpur. (Section 48)

- 1. Faculties.**— (1) The University shall include the following Faculties:—
- (i) Faculty of Islamic Learning;
 - (ii) Faculty of Arts;
 - (iii) Faculty of Science;
 - (iv) Faculty of Law;
 - (v) Faculty of Education; and
 - (vi) Faculty of Commerce.
- (2) There shall be a Board of each Faculty which shall consist of—
- (i) the Dean to be appointed in the manner prescribed in sub-paragraph (2) of paragraph 2;
 - (ii) the Professors and the Chairmen of the Teaching Departments comprised in the Faculty;
 - (iii) two members of each Board of Studies comprised in the Faculty, to be nominated by the Board of Studies concerned; and
 - (iv) two teachers to be nominated by the Academic Council by reason of their specialised knowledge of the subjects which, though not assigned to the Faculty, have in the opinion of the Academic Council, important bearing on the subjects assigned to the Faculty.
- (3) The members and teachers mentioned in clauses (iii) and (iv) of sub-paragraph (2) shall hold office for two years.
- (4) The quorum for a meeting of the Board of a Faculty shall be one-half of the total number of members, fraction being counted as one.
- (5) The Board of each Faculty shall, subject to the general control of the Academic Council and the Syndicate, have the powers—
- (a) to co-ordinate the teaching, publication and research work in the subjects assigned to the Faculty;
 - (b) to scrutinize the recommendations of the Boards of Studies comprised in the Faculty in regard to the appointment of paper setters and examiners, except for research examination, and to forward the panels of suitable paper setters and examiners for each examination to the Vice-Chancellor;
 - (c) to consider any other academic matter relating to the Faculty and to report thereon to the Academic Council; and
 - (d) to perform such other functions as may be assigned.
- 2. Dean.**— (1) There shall be a Dean of each Faculty, who shall be the Chairman and Convener of the Board of the Faculty.

(2) ⁴³[The Dean of each Faculty shall be appointed by the Chancellor from amongst the three senior most Professors in the Faculty for a period of three years and shall be eligible for reappointment;

Provided that if no Professor is available in a Faculty, a Professor from some other Faculty may act as a Dean till a Professor of the Faculty itself is appointed.]

⁴⁴[(3) * * * * *]

⁴⁵[(4) * * * * *]

(5) The Dean shall present candidates for admission to degrees, except Honorary Degrees in the courses falling within the purview of the Faculty.

(6) The Dean shall exercise such administrative and academic Powers as may be delegated to him.

3. Teaching Department and Chairman.— (1) There shall be a teaching department for each subject or a group of subjects, as may be prescribed by Regulations and each teaching department shall be headed by a Chairman.

⁴⁶[(2) The Chairman of a Teaching Department and the Director of an Institute shall be appointed by the Syndicate on the recommendation of the Vice-Chancellor from amongst the three senior most Professors of the Department for a period of three years and shall be eligible for re-appointment;

Provided that in a Department where there are less than three Professors, the appointment shall be made from amongst the three senior most Professors and Associate Professors of the Department;

Provided further that in a Department in which there is no Professor or Associate Professor, no such appointment shall be made and the department shall be looked after by the Dean of the Faculty with the assistance of the senior most teacher of the Department.]

(3) The Chairman of the Department shall plan, organise and supervise the work of the Department and shall be responsible to the Dean for the work of his Department.

4. Board of Studies.— (1) There shall be a separate Board of Studies for each subject or group of subject as may prescribed by Regulations.

(2) Each Board of Studies shall consist of—

(i) the Chairman of the teaching Departments;

⁴³Substituted by the Islamia University of Bahawalpur University (Amendment) Ordinance, 1981 (XI of 1981); and published in the Punjab Gazette (Extraordinary), dated 4.6.1981, pages 397-J to 397-I, s.5(i). Earlier substituted by the the Islamia University of Bahawalpur University (Amendment) Ordinance, 1980 (XVI of 1980); and published in the Punjab Gazette (Extraordinary), dated 22.12.1980, pages 1287-M to 1287-P, s. 2(7)(a)(i).

⁴⁴Omitted by the Islamia University of Bahawalpur University (Amendment) Ordinance, 1980 (XVI of 1980); and published in the Punjab Gazette (Extraordinary), dated 22.12.1980, pages 1287-M to 1287-P, s. 2(7)(a)(ii).

⁴⁵Omitted by the Islamia University of Bahawalpur University (Amendment) Ordinance, 1980 (XVI of 1980); and published in the Punjab Gazette (Extraordinary), dated 22.12.1980, pages 1287-M to 1287-P, s.2(7)(a)(ii).

⁴⁶Substituted by the Islamia University of Bahawalpur University (Amendment) Ordinance, 1981 (XI of 1981); and published in the Punjab Gazette (Extraordinary), dated 4.6.1981, pages 397-J to 397-I, s.5(ii). Earlier substituted by the Islamia University of Bahawalpur University (Amendment) Ordinance, 1980 (XVI of 1980); and published in the Punjab Gazette (Extraordinary), dated 22.12.1980, pages 1287-M to 1287-P, s. 2(7)(b).

- (ii) all Professors and Associate Professor in the University teaching department:

Provided that if the total number of University teachers under (i) and (ii) comes to less than three, this number may be made up by nominating one Lecturer or Assistant Professor from amongst the University teachers to be elected from amongst themselves; and

- (iii) one expert to be appointed by the Vice-Chancellor:

Provided that in the case of subjects which are taught in the teaching departments or constituent colleges only, such as Law, Commerce, Social Work, Journalism and Geology, the Board of Studies shall consist of–

- (i) the Chairman of the University teaching department;
- (ii) all Professors and Associate Professors in the University teaching department;
- (iii) one University teacher, other than a Professor or an Associate Professor, to be appointed by the Academic Council; and
- (iv) two experts to be appointed by the Vice-Chancellor:

Provided further that in the case of Professional subjects which are taught in the affiliated colleges only, and not in the University such as Medicines, Dentistry, Home Economics, Engineering and Education, the Board of Studies shall consist of–

- (i) the Principals of the Colleges concerned;
- (ii) five teachers of the colleges, to be appointed by the Syndicate; and
- (iii) two experts to be appointed by the Vice-Chancellor:

Provided further that in the case of such subjects of Humanities and Sciences as are taught in the affiliated colleges only, and not in the University, the Board of Studies shall consist of–

- (i) three teachers from the colleges doing teaching work in the subject, to be appointed by the Academic Council; and
- (ii) one expert to be appointed by the Vice-Chancellor.

(3) The term of office of members of the Board of Studies, other than *ex-officio* members, shall be three years.

(4) The quorum for meetings of the Board of Studies shall be one-half the number of members, a fraction being counted as one.

(5) The Chairman of the University teaching department concerned shall be the Chairman and convener of the Board of Studies. Where in respect of a subject there is no University teaching department, the Chairman shall be appointed by the Syndicate.

(6) The functions of the Board of Studies shall be–

- (a) to advise the Authorities on all academic matters connected with instruction, publication, research and examination in the subject or subjects concerned;
- (b) to propose curricula and syllabi for all degree, diploma and certificate courses in the subject or subjects concerned;
- (c) to suggest a panel of names paper-setters and examiners in the subject or subjects concerned; and
- (d) to perform such other functions as may be prescribed by Regulations.

5. Advanced Studies and Research Board.– (1) The Advanced Studies and Research Board shall consist of–

- (i) the Vice-Chancellor (Chairman);
- (ii) the Deans;
- (iii) three University Professors other than Deans to be appointed by the Syndicate;
- (iv) two University Teachers having research qualifications and experience to be appointed by the Academic Council; and
- (v) two teachers from affiliated colleges having research qualifications.

(2) The term of office of members of the Advanced Studies and Research Board, other than *ex-officio* members shall be three years.

(3) The quorum for a meeting of the Advanced Studies and Research Board shall be one-half of the total number of members, a fraction being counted as one.

- (4) The functions of the Advanced Studies and Research Board shall be–
 - (a) to advise the Authorities on all matters connected with the promotion of advanced studies, publication and research in the University;
 - (b) to consider and report to the Authorities on the institution of research degrees in the University;
 - (c) to propose Regulations regarding the award of research degrees;
 - (d) to appoint supervisors for research studies and to determine the subjects of their thesis;
 - (e) to recommend panels of names of paper setters and examiners for research examinations after considering the proposals of the Board of Studies in this behalf; and
 - (f) to perform such other functions as may be prescribed by Statutes.

6. Selection Board.– (1) The Selection Board shall consist of–

- (i) the Vice-Chancellor (Chairman);
- (ii) the Chairman, or a member of the Public Service Commission to be nominated by the Chairman;
- (iii) the Dean of the Faculty concerned;

- (iv) the Chairman of the teaching department concerned; and
- (v) one member of the Syndicate and two other men of eminence, to be appointed by the Syndicate, provided that none of them is an employee of the University.

(2) The members mentioned in clause (v) of sub-paragraph (1) shall hold office for two years.

(3) The quorum of Selection Board in case of selection of a Professor or an Associate Professor and other teachers shall be four and three respectively. In case of selection of officers, other than teachers, the Selection Board shall consist only of members mentioned at (i), (ii) and (v) of sub-paragraph (1).

(4) No member who is a candidate for the post to which appointment is to be made shall take part in the proceedings of the Board.

(5) In selecting candidates for the posts of Professors and Associate Professors, the Selection Board shall co-opt for consultation three experts in the subject concerned and in selecting candidates for other teaching posts, two experts in the subject concerned, to be nominated by the Vice-Chancellor from a standing list of experts for each subject approved by the Syndicate on the recommendation of the Selection Board and revised from time to time.

7. Function of the Selection Board.– (1) The Selection Board for teaching and other posts shall consider the applications received in response to advertisement and recommend to the Syndicate the names of suitable candidates for appointment to teaching or other posts, as the case may be, and may also recommend–

- (i) the grant of a higher initial pay in a suitable case for reasons to be recorded; or
- (ii) the appointment of an eminently qualified person to a Professorship in the University on terms and conditions other than those prescribed.

(2) In the event of difference of opinion between the Selection Board and the Syndicate, the matter shall be referred to the Chancellor whose decision shall be final.

8. Finance and Planning Committee.– (1) The Finance and Planning Committee shall consist of–

- (i) the Vice-Chancellor (Chairman);
 - (ii) one member of the Senate to be appointed by the Senate;
 - (iii) one member of the Syndicate to be appointed by the Syndicate;
 - (iv) two members of the Academic Council to be appointed by the Academic Council;
 - (v) two nominees of the Chancellor, one each from Education Department and Finance Department; and
 - (vi) the Treasurer.
- (2) The term of office of the appointed members shall be three years.

(3) The quorum for a meeting of the Finance and Planning Committee shall be three members.

9. Functions of the Finance and Planning Committees.— The functions of the Finance and Planning Committee shall be—

- (a) to consider the annual statement of accounts and the annual and revised budget estimates and to advise the Syndicate thereon;
- (b) to review periodically the financial position of the University;
- (c) to advise the Syndicate on all matters relating to planning, development, finances, investments, and accounts of the University; and
- (d) to perform such other functions as may be prescribed.

10. Affiliation Committee.— (1) The Affiliation Committee shall consist of—

- (i) a Chairman to be nominated by the Syndicate;
- (ii) two Professors to be nominated by the Academic Council; and
- (iii) the Director of Education of the Region concerned and the Director of Technical Education.

(2) The term of office of the members of the Committee other than *ex-officio* members, shall be two years.

(3) The Affiliation Committee may co-opt not more than three experts.

(4) The quorum for a meeting of or for an inspection by the Affiliation Committee shall be three.

(5) An officer of the University to be designated by the Vice-Chancellor for this purpose shall act as Secretary to the Committee.

(6) The functions of the Affiliation Committee shall be—

- (a) to inspect the educational institutions seeking affiliation with, or admission to the privileges of the University and to advise the Academic Council thereon;
- (b) to inquire into complaints alleging breach of conditions of affiliation by affiliated colleges and to advise the Academic Council thereon; and
- (c) to perform such functions as may be prescribed by Regulations.

11. Discipline Committee.— (1) The Discipline Committee shall consist of—

- (i) Chairman to be nominated by the Vice-Chancellor;
- (ii) two Professors to be nominated by the Academic Council;
- (iii) one member to be nominated by the Syndicate;
- (iv) the teacher or officer incharge of students' affairs by whatever names called (Member) Secretary;
- (v) Senior Warden of the University Hostels; and
- (vi) the President, University Students' Union.

(2) The terms of office of the members of the Committee, other than ex-officio members, shall be two years.

(3) The quorum for a meeting of the Discipline Committee shall be four members.

(4) The functions of this Committee shall be—

(i) to propose Regulations to the Academic Council relating to the conduct of University students, maintenance of discipline and breach of discipline; and

(ii) to perform such other functions as may be prescribed.